

TRAKX SAS

Terms & Conditions

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PART I – LEGAL STATUS, REGULATORY FRAMEWORK AND DEFINITIONS

1. Legal Status, Regulatory Framework and Scope

TRAKX SAS (“TRAKX” or the “Company”) is a *société par actions simplifiée* incorporated under the laws of France, having its registered office located at 10, rue de Penthièvre, 75008 Paris (France), and registered with the Trade and Companies Registry (*Registre du commerce et des sociétés*) of Paris under number 850 626 078. TRAKX operates as a crypto-asset service provider within the meaning of Regulation (EU) 2023/1114 on Markets in Crypto-assets (“MiCA”).

TRAKX is authorised as a crypto-asset service provider (CASP) under Regulation (EU) 2023/1114 (MiCA) and supervised by the French Financial Market Authority (*Autorité des marchés financiers* – AMF) under number []. It provides its services in compliance with applicable European Union and French laws and regulations, including those relating to anti-money laundering and counter-terrorist financing (“AML/CFT”), market integrity, consumer protection and data protection.

These Terms and Conditions (the “Terms” or “GTC”) govern the contractual relationship between TRAKX and any natural or legal person accessing the Services (the “Client” or “User”). They are drafted for regulatory and contractual purposes and reflect the requirements of MiCA, related regulatory technical standards and applicable national law.

In accordance with articles 75 and 82 of MiCA, TRAKX states that, prior to the provision of the services of custody and administration of crypto-assets on behalf of clients, and of transfer services for crypto-assets on behalf of clients, it has informed the relevant Client and entered into the written agreements set out in Annex VIII and Annex IX, through the Client’s acceptance and execution of these GTC.

2. Definitions and Interpretation

Unless otherwise defined herein, capitalised terms shall have the meaning assigned to them under MiCA.

For the purposes of these Terms, the following definitions apply:

API means the application programming interface allowing authorised third-party websites or applications to access the TRAKX Services.

Baskets of Crypto-assets means diversified groups of Crypto-assets constituting the underlying components of CTIs.

Blockchain means a distributed ledger technology enabling the validation, recording and immutability of Crypto-asset transactions through decentralised consensus mechanisms.

Coinbase Custody means Coinbase Group, including Coinbase Europe and its corporate affiliates, providing institutional custody services for Crypto-assets.

Consumer means any natural person acting outside the scope of a commercial, industrial, craft or professional activity within the meaning of the French Consumer Code.

CTIs (Crypto Tradable Indices) means tokenised representations of Baskets of Crypto-assets issued and maintained by TRAKX.

Custody means the service enabling Users to hold Crypto-assets in wallets provided by TRAKX, directly or via third-party providers such as Fireblocks.

Crypto-assets means assets as defined in Regulation (EU) 2023/1114.

Fiat Currency means legal tender issued by a central bank.

Fireblocks means Fireblocks Inc., a provider of Crypto-asset custody and transaction infrastructure.

KYC Procedure means the identification, verification and due-diligence process implemented by TRAKX in accordance with AML/CFT obligations.

Staking means the delegation of Crypto-assets to blockchain validators under Proof-of-Stake mechanisms.

TRAKX Account means the account opened for a user following successful completion of KYC.

TRAKX Platform means the Crypto-asset trading platform operated by TRAKX.

TRAKX Services means all Crypto-asset services provided by TRAKX via the Website, APIs or other technical means.

User / Client means any natural or legal person holding a TRAKX Account.

Website means <https://trakx.io> and any related interfaces.

Auto-Invest - Crypto TradableIndices (CTI)

Auto-Invest: A systematic investment strategy where the User invests a fixed amount of money at regular intervals, regardless of the market price.

Crypto Tradable Index (CTI): A diversified portfolio of Crypto-assets packaged as an index, constructed and managed by TRAKX in accordance with predefined methodologies. They are available notably on the Platform.

Investment Amount: The fixed amount of funds allocated by the User for each interval.

Investment Interval: The frequency at which investments will occur (e.g., daily, weekly, monthly).

Target CTI: The specific CTI chosen by the User for the Auto-Invest strategy.

3. Regulatory Classification of Services

The Services provided by TRAKX qualify as Crypto-asset services under Article 3 of MiCA, including in particular:

- custody and administration of crypto-assets on behalf of clients;
- operation of a trading platform for crypto-assets;
- exchange of crypto-assets for funds;
- exchange of crypto-assets for other crypto-assets;
- execution of orders for crypto-assets on behalf of clients;
- placing of crypto-assets;
- reception and transmission of orders for crypto-assets on behalf of clients;
- providing advice on crypto-assets;
- providing portfolio management on crypto-assets;
- transfer services for crypto-assets on behalf of clients.

4. Nature of the Contractual Relationship

Unless otherwise expressly stated, TRAKX acts as principal for the purposes of executing transactions required for the provision of the Services.

The relationship between TRAKX and the Client is limited to the provision of the specific services expressly agreed and regulated under applicable law.

Where TRAKX provides the service of *reception and transmission of orders*, it acts as an intermediary solely for that purpose and within the limits imposed by applicable regulation.

No broader fiduciary, discretionary advisory, general agency or mandate relationship shall be deemed to exist beyond what is strictly required by law.

The Client acknowledges that TRAKX acts in accordance with its obligations under MiCA and applicable law, including conduct-of-business and client protection requirements.

PART II – GENERAL CONTRACTUAL PROVISIONS

5. About These Terms and Conditions

Contractual relationship

These GTC constitute a legal agreement and create a binding contract between You and TRAKX, and govern Your use of the TRAKX Services offered by TRAKX when You log in to Your TRAKX Account via the Website.

Additional Conditions

The Privacy Policy (available on the following link (<https://trakx.io/privacy-policy>), the TRAKX Platform Rules (available on the following link (<https://trakx.io/trakx-market-trading-rules>), and any other agreements entered into separately between you and TRAKX, as amended from time to time, and shall be deemed additional terms and conditions that are an integral part of the GTC and shall have the same legal effect (the "Additional GTC"). These documents constitute a legally binding agreement. Your use of the TRAKX Services is deemed to be your acceptance of the Additional GTC. In the event of any inconsistency between the Additional GTC and these GTC, unless otherwise specified in these GTC, the provisions of these GTC shall prevail. Some TRAKX Services may be operated by an entity other than TRAKX, subject to acceptance of a separate agreement. In this case, you must comply with the GTC of such agreements.

Changes to the GTC

Due to the rapid development of Crypto-assets and TRAKX, in particular technological development, TRAKX reserves the right to amend the GTC where required by regulatory, legal, operational or product changes. TRAKX will notify you of such changes by updating the GTC on its Website and changing the date displayed on this page. All modifications or changes to the GTC shall be effective upon posting on the Website at (<https://trakx.io/terms>) and notification to Users. These GTC as modified will be subject to your express acceptance, or tacit acceptance after a period of thirty (30) days, and will then be enforceable against you. If you do not accept the amended GTC, you must immediately stop using the TRAKX Services and request the deactivation of your TRAKX Account on the Website. After thirty (30) days have passed without any notice to you, the amended GTC will become effective and will apply to you for any TRAKX Service you perform. Where required, in the absence of acceptance within this thirty (30) day period, TRAKX reserves the right to immediately and temporarily discontinue your access to the TRAKX Services. You should review the GTC frequently to ensure that you understand the GTC that apply to your access and use of the TRAKX Services.

Prohibited use

By accessing and using the TRAKX Services, you represent and warrant that you are not listed on any trade embargo or economic sanctions list (such as the United Nations Security Council sanctions list, the European Union sanctions list, the French Treasury Department sanctions list), the Office of Foreign Assets Control (OFAC) list of Specially Designated Nationals (SDN List), or the Department of Commerce list of persons or entities under sanctions.

IMPORTANT NOTE – TRAKX DOES NOT ACCEPT ANY USERS (INCLUDING RESIDENTS AND CITIZENS) UNDER THE CONTROL OF, OR A NATIONAL OR RESIDENT OF AFGHANISTAN, ANGOLA, BANGLADESH, BELARUS, BENIN, BURUNDI, CAMBODIA, CENTRAL AFRICAN REPUBLIC, CONGO (DEMOCRATIC REPUBLIC), CONGO (REPUBLIC OF CONGO), NORTH KOREA, CUBA, ERITREA, ETHIOPIA, GUATEMALA, EQUATORIAL GUINEA, GUINEA-BISSAU, HAITI, HONDURAS, IRAN, IRAQ, LIBYA, MADAGASCAR, NICARAGUA, NIGERIA, UGANDA, UZBEKISTAN, SOMALIA, SUDAN, SOUTH SUDAN, SYRIA, TAJIKISTAN, CHAD, TURKMENISTAN, UNITED STATES OF AMERICA, VENEZUELA, YEMEN, ZIMBABWE. This list is based on regulatory, sanctions-related and risk-based assessments and may be updated in accordance with applicable laws and regulatory guidance.

Enforceability and proof

The GTC are made available to you on the Website under the heading "Terms and Conditions" at (<https://trakx.io/terms>) and you accept them when you create a TRAKX Account and use each TRAKX Service. You will be notified of updates and any new version of the GTC will be made available to you on the Website. The GTC and any subsequent amendments thereto shall be binding on you and you acknowledge and agree with them.

Invalidity of a clause of the GTC

The invalidity of one of the provisions of the Conditions does not entail the invalidity of the whole of the GTC.

About TRAKX

TRAKX has developed a platform to create, distribute and facilitate the trading of Crypto Tradable Indices ("CTIs", as defined above). These CTIs reduce the complexity and fees associated with the taking of positions on various Crypto-assets. TRAKX offers a wide range of CTIs, each of them allowing CTIs holders to be exposed to different positions on Baskets of Crypto-assets.

As detailed in paragraph 3 below, you must register and open a TRAKX Account with TRAKX and prior to any Transaction, deposit USDC before trading CTIs, either (i) by a deposit of your USDC directly on your dedicated User Wallet, or (ii) use TRAKX's on-ramp solution .

While TRAKX is committed to maintaining the accuracy of the general information made available to you on the Website and for your information only, TRAKX cannot guarantee or warrant its accuracy, applicability, reliability, integrity, performance or suitability at any time, nor shall TRAKX be liable for any loss or damage that may be caused directly or indirectly by your interpretation of such content, and the use of the TRAKX Services that may result from it. You are advised that the information given generally about the Crypto-assets and the services provided by TRAKX or TRAKX is subject to change without notice and the primary purpose of providing this information is to assist you in understanding the services, and then it will be up to you to make independent decisions. In addition, you acknowledge that the general information made available on the Website is provided for informational purposes only and cannot or should not have any binding effect.

You acknowledge that TRAKX does not provide any investment, tax, legal or other type of advice and is not responsible for the use or interpretation of the information available on TRAKX or any other medium. However, TRAKX may provide, where applicable, Crypto-asset advice within the meaning of MiCA.

You are advised that all Users of the TRAKX Services must understand the risks involved in trading in Crypto-assets and you are advised to exercise caution and invest responsibly within the limits of your own ability and knowledge. In particular, you should note that any investment or transaction involves risks and that past performance is not indicative of future performance. TRAKX shall not be responsible for any decisions you make to buy, sell or hold crypto-assets, CTIs or Fiat Currencies based on any information, including information provided by TRAKX.

PART III – ACCOUNT OPENING, ELIGIBILITY AND SECURITY

6. Account Opening, Eligibility and KYC

Access to the Services is subject to the opening of a TRAKX Account and the successful completion of KYC and due-diligence procedures.

Registration

All Users must apply for a TRAKX Account on the Website at <https://trakx.io/signup> before using the TRAKX Services. When applying for a TRAKX Account, you must provide the information identified in this paragraph 3 or additional information requested by TRAKX, so that TRAKX or any provider designated by TRAKX can proceed with the Know-Your-Client Procedure, agree to these GTC, and review the Privacy Policy and Rules of the TRAKX Platform.

TRAKX may refuse to open a TRAKX Account where required by applicable law, regulatory obligations, AML/CFT requirements or internal risk assessments.

You agree to provide complete and accurate information as of the day you open a TRAKX Account, and agree to timely update all information you provide to TRAKX to maintain the integrity and accuracy of the information.

Each User (including natural person, legal entity or other organization) may maintain only one main account in name at any given time. However, Users may open several Accounts with TRAKX's prior written consent.

For some TRAKX Services, you may be required to create a separate account independent of your TRAKX Account, based on the provisions of these GTC or the Additional GTC.

Eligibility

By registering to use a TRAKX Account, you represent and warrant that: As an individual, you are at least 18 years of age or of legal age to enter into a contract under the applicable laws of France; As a natural person, legal entity or other organization, you have full legal capacity and authority to enter

into these GTC; You have not been previously suspended or had your use of TRAKX or the TRAKX Services removed; You do not currently have a TRAKX account; If you are acting as an employee or agent of a legal entity and are accepting these GTC on its behalf, you represent and warrant that you have all necessary rights and authority to bind such legal entity; Your use of the TRAKX Services will not violate any laws and regulations applicable to you or TRAKX including, but not limited to, anti-money laundering, asset freezing, anti-corruption, anti-terrorist financing regulations, international economic sanctions programs, laws, regulations, court proceedings or governmental requests, administrative decisions or doctrine, etc. Please note that some TRAKX Services may not be available to Users, permanently or from time to time, (i) depending on the region, territory or jurisdiction in which they are located (ii) based on other criteria, or (iii) for certain users, including to comply with applicable laws or regulatory restrictions. In such a case, TRAKX shall not be liable for any loss or damage that may occur. To the extent permitted by law, TRAKX reserves the right to change, modify or impose additional restrictions at its discretion and at any time under the GTC set forth in paragraph 1 of Section II of these GTC, including to comply with applicable laws.

Verification of User's identity

Your registration with TRAKX to open a TRAKX Account shall be deemed to be your agreement to provide the personal information required for the verification of your identity. This information will be used to verify your identity, identify indications of money laundering, terrorist financing, links to embargoed activities or persons under international economic sanctions, Politically Exposed Persons (PEP), adverse media screening, media monitoring or negative news screening, fraud and other financial crimes through TRAKX, or for any other lawful purpose indicated by TRAKX. TRAKX will collect, use, maintain and share such information in accordance with the Privacy Policy. In addition to providing such information, you agree to allow TRAKX to keep a record of such information for the period during which your account is active and for five (5) years after the termination of your TRAKX Account, in accordance with French and European regulations on archiving such data.

You also authorize TRAKX to conduct any necessary due diligence and investigation directly or through a third party to verify your identity or to protect you and/or TRAKX from financial crimes, such as fraud. The information TRAKX needs to verify your identity may include, but is not limited to, your first and last name, mailing address, email address, telephone number, other contact information, user name, government-issued identification, date of birth, real time photo and/or video, and other information collected during TRAKX Account registration. The nature or format of this information (image, pdf document, ...) may change over time. The list of required documents may differ in the case of the creation of a TRAKX Account for a legal entity or a natural person.

You note that TRAKX may use contact data only in accordance with the Privacy Policy (<https://trakx.io/privacy-policy>) and to the extent permitted by applicable law, and that under applicable law you have the right to opt-in to lists created to block telephone solicitations. When you provide the requested information, you confirm that it is true, current and accurate. If your identification expires, you may be required to provide a new, valid and complete document as soon as possible or your TRAKX Account will be suspended.

After registration, you must ensure that the information is true, complete and updated in a timely manner when it is changed in any way. You acknowledge and agree that you have an obligation to update all information in the event of a change, as soon as possible, to maintain the integrity and accuracy of the information, including, but not limited to, identity, financial or employment status, change of address, telephone number, bank account information, or any other change that may affect your ability to use TRAKX Services, and to provide a new supporting document.

During the course of the business relationship, TRAKX may ask you to update your documents or provide additional documents (e.g. proof of origin of funds, proof of income or assets, proof of purchase of Crypto-assets, response to a User questionnaire), in order to allow you to access a TRAKX Service or to allow you to access new TRAKX Services. If there is reason to believe that any of the information you have provided is incorrect, false, outdated or incomplete, TRAKX reserves the right to send you a notice requiring correction, to delete the information directly and, if appropriate, to

terminate all or part of the TRAKX Services provided to you. If TRAKX is unable to reach you with the contact information you have provided, you will be fully responsible for any loss or expense caused to you or TRAKX while using the TRAKX Services.

By registering and opening a TRAKX Account, you authorize TRAKX to conduct all necessary due diligence and investigations as TRAKX deems necessary, pursuant to the obligations and regulations to which TRAKX is subject, either directly or through a third party, including verifying your identity or protecting you, other users and/or TRAKX from fraud or other financial crimes or offenses pursuant to applicable law, and to take such action as may be necessary based on the results of such due diligence and investigations. You also acknowledge and agree that your personal information may be disclosed to public authorities and agencies, including those responsible for the prevention of fraud, money laundering or financial crime in general.

Conditions

The TRAKX Account may only be used by the Account holder, or several User with TRAKX's prior consent. TRAKX reserves the right to suspend, freeze or cancel Transactions and use of TRAKX Accounts by (i) persons other than the Account holder (ii) or unauthorized persons.

If you suspect or become aware of any unauthorized use of your username and password, you must notify TRAKX immediately. Unless otherwise provided under a management agreement, TRAKX assumes no responsibility for any loss or damage resulting from the use of the TRAKX Account by a third party with or without your authorization.

When you withdraw or transfer Crypto-assets from your TRAKX Account to an External Wallet, you represent and warrant that you are the beneficial owner of the External Wallet.

TRAKX Account Security

TRAKX is committed to maintaining the security of Users' funds and Crypto-assets and has implemented industry standard protection for the TRAKX Services.

However, the actions of individual Users may present risks. Unless otherwise provided under a management agreement, you agree to treat your access credentials (such as your User name, User number and password) as confidential information and not to disclose such information to any third party. You also agree that you are solely responsible for taking all necessary security measures to protect your TRAKX Account and your personal information. You are solely responsible for the security of your TRAKX Account and password, and are responsible for all Transactions made on your TRAKX Account.

TRAKX assumes no responsibility for any loss, damage or consequence, financial or otherwise, caused by the authorized or unauthorized use of your TRAKX Account and your TRAKX Account credentials, including, but not limited to, disclosure of information, publication of information, consent to various rules and agreements given by clicking on the Website or, online contract renewal, etc.

By creating a TRAKX Account, you agree that:

You will immediately notify TRAKX if you become aware of any unauthorized use of your TRAKX Account and password or any other breach of security;

You will strictly comply with all TRAKX mechanisms or procedures regarding security, authentication, investment/trade, deposits and withdrawals;

You will take appropriate steps to log out of TRAKX at the end of each visit;

You should create a strong password that is different from the ones you normally use, and maintain a high degree of control and security over your credentials;

You must ensure that the email address and telephone number you provide are correct at all times, so that you can be alerted by TRAKX to any problems that may affect the security of your TRAKX Account; and you must ensure that you protect access to this email and telephone number;

TRAKX will never ask for your login or password, any such message is a scam/phishing attempt;

You will follow security best practices, such as not storing passwords online, not providing remote access while active on your TRAKX Account. In this regard, TRAKX recommends the use of dual authentication to access the TRAKX Account, etc. ;

TRAKX shall not be liable for any losses arising from malicious access to your TRAKX Account, and for any use or intrusion resulting from improper or inadequate protection of your credentials.

TRAKX may refuse, suspend or terminate access where regulatory, legal or risk-based considerations so require.

7. Description of Services

Prior to the establishment of a business relationship, Clients are informed, in a clear and comprehensible manner, about how their orders will be executed, including the applicable execution arrangements, as set out in these Terms and Conditions and the Order Execution Policy incorporated herein.

Crypto-asset Trading: TRAKX enables Clients to buy, sell, exchange and redeem Crypto-assets and CTIs via the TRAKX Platform.

CTIs: Crypto Tradable Index (CTI): A diversified portfolio of Crypto-assets packaged as an index, constructed and managed by TRAKX in accordance with predefined methodologies. They are available notably on the Platform.

Staking CTIs: Certain CTIs embed assets eligible for staking. TRAKX retains discretion over staking allocation, timing and validator selection.

The main features and conditions of use of the TRAKX Services, as well as the costs, fees and charges associated with the TRAKX Services and the particular risks associated with the use of the TRAKX Services are set out within this section together with the information available at all times on the Website.

Upon successful registration of your TRAKX Account and successful completion of the Know-Your-Client Procedure, you may use various TRAKX Services in accordance with the provisions of these GTC (including the TRAKX Platform Rules) and as communicated to users on the Website.

The lists of TRAKX Services and Crypto-assets offers may be subject to change, in particular for legal or technical reasons.

Therefore, TRAKX may:

- Provide, modify or terminate any TRAKX Service and/or replace it with one that it reasonably deems similar; and
- Allow or prohibit certain users from using any TRAKX Service in accordance with the applicable TRAKX Platform GTC and Rules.

Although changes may be made with or without notice, you acknowledge that TRAKX will use its best efforts to inform you of changes in a timely manner, for example via the announcement page of the Website, and will offer solutions where possible.

You note that certain TRAKX Services may be provided at the request of the User and subject to separate agreements.

You agree that, as set forth in the GTC and except as otherwise provided or required by applicable law, TRAKX shall not be liable for any modification, discontinuance, suspension or termination of the TRAKX Services by TRAKX, a third-party entity, you or any third party, or for the suspension or termination of your access to the TRAKX Services.

Specific provisions regarding Crypto-asset Services

The Client is informed that the TRAKX Services may fall within the definition of Crypto-asset Services within the meaning of MiCA, and more specifically:

- custody and administration of crypto-assets on behalf of clients;
- operation of a trading platform for crypto-assets;
- exchange of crypto-assets for funds;
- exchange of crypto-assets for other crypto-assets;
- execution of orders for crypto-assets on behalf of clients;
- placing of crypto-assets;
- reception and transmission of orders for crypto-assets on behalf of clients;
- providing advice on crypto-assets;
- providing portfolio management on crypto-assets;
- transfer services for crypto-assets on behalf of clients.

In accordance with articles 75 and 82 of MiCA, TRAKX states that, prior to the provision of the services of custody and administration of crypto-assets on behalf of clients, and of transfer services for crypto-assets on behalf of clients, it has informed the relevant Client and entered into the written agreements set out in Annex VIII and Annex IX, through the Client's acceptance and execution of these GTC.

As a CASP operating a trading platform for Crypto-assets, TRAKX lays down, maintains and implements clear and transparent operating rules for the trading platform in compliance with Article 76 of MiCA.

In accordance with article 76 of MiCA, TRAKX shall make public any bid and ask prices and the depth of trading interests at those prices which are advertised for Crypto-assets through the TRAKX Platform, as well as the price, volume and time of the transactions executed in respect of Crypto-assets traded on the TRAKX Platform. That information shall be made available free of charge 15 minutes after publication in a machine-readable format and it shall remain published for at least two years.

TRAKX has established and implements an order execution policy in order to respect the provision of article 78 of MiCA, and more specifically to obtain, while executing orders, the best possible result for the Clients taking into account factors of price, costs, speed, likelihood of execution and settlement, size, nature, conditions of custody of the Crypto-assets and any other consideration relevant to the execution of the order. In the event of any material change to its order execution policy, the Company shall inform the Client accordingly. By accepting these GTC, the Client acknowledges that it has been provided with, and has taken note of, appropriate and clear information regarding the Company's order execution policy as set out herein, and hereby gives its consent thereto.

In accordance with article 80 of MiCA, TRAKX does not receive any remuneration, discount or non-monetary benefit in return for routing orders received from Clients to a particular trading platform for crypto-assets or to another CAPS.

When providing advice on Crypto-assets and portfolio management of Crypto-assets, TRAKX gathers information from the Clients or prospective Clients regarding their knowledge of, and experience in,

investing, including in Crypto-assets, their investment objectives, including risk tolerance, their financial situation including their ability to bear losses, and their basic understanding of the risks involved in purchasing Crypto-assets, so as to enable it to recommend to Clients or prospective Clients whether or not the Crypto-assets are suitable for them and, in particular, are in accordance with their risk tolerance and ability to bear losses. Such collection of information is consistent with the provisions of article 81 of MiCA.

In relation to the provisions of advice on Crypto-assets of portfolio management of Crypto-assets, Clients acknowledge and understand that the value of Crypto-assets might fluctuate, the Crypto-assets might be subject to full or partial losses, the Crypto-assets might not be liquid, and the crypto-assets are not covered by the deposit guarantee schemes under Directive 2014/49/EU.

More specifically, the Client acknowledges that TRAKX is not a member of any deposit guarantee scheme and only holds the financial resources required under article 67 of MiCA (capital requirements applicable to CASP). Accordingly, the Client may not submit any compensation claim to a deposit guarantee scheme. In the event of a loss, in particular but not limited thereto, TRAKX's ability to return and/or reimburse assets may be limited.

8. Orders, Execution and Settlement

Orders are executed using automated systems and predefined execution logic.

Partial execution, slippage and market-price execution may occur depending on market conditions.

Once matched, orders are irrevocable.

Instructions

Access

Subject to your continued compliance with the GTC, TRAKX grants you revocable, limited, non-exclusive, non-transferable (unless otherwise provided) and non-sublicensable access to and use of the TRAKX Services via your computer or Internet-enabled devices for your personal/internal purposes. You are prohibited from using the TRAKX Services for resale or commercial purposes, including conducting transactions on behalf of other persons or entities, unless expressly authorized by TRAKX. All of the above actions are expressly prohibited and constitute a material breach of these GTC. The arrangement of content, format, function and access rights with respect to the TRAKX Services are provided for at the discretion of TRAKX. TRAKX reserves all rights not expressly granted in these GTC. Therefore, you are prohibited from using the TRAKX Services in any manner not expressly permitted by these GTC.

These GTC grant only a limited license to access and use the TRAKX Services. Accordingly, you agree that when you use the TRAKX Services, TRAKX does not transfer the TRAKX Services or the ownership or intellectual property rights of any TRAKX intellectual property to you or anyone else. All text, graphics, user interfaces, visual interface, photos, sounds, flowcharts, computer code (including html code), programs, software, products, information and materials, as well as the design, structure, selection, coordination, expression, appearance and layout of any content included in or provided through the TRAKX Services, are exclusively owned, controlled and/or licensed by TRAKX and TRAKX or its members, parent companies, licensors or affiliates.

TRAKX owns all comments, suggestions, ideas or other information or materials (hereinafter collectively referred to as "Comments") regarding TRAKX or the TRAKX Services that you provide via

e-mail or any other means. You hereby transfer all rights, ownership and interest in the Comments and all related intellectual property rights to TRAKX. You shall have no right and hereby waive any claim to acknowledgement of rights or compensation based on any Feedback, or to any modification, improvement or development based on any Feedback.

Restriction

When using the TRAKX Services, you agree and undertake to comply with the following provisions:

- When you use the TRAKX Services to withdraw or transfer Crypto-assets to an External Wallet, you represent and warrant that you are the beneficial owner of the External Wallet, and that no subsequent use of the External Wallet for which you are the beneficial owner will be used for actions and transactions prohibited by anti-money laundering and anti-terrorist financing regulations, international economic sanctions and embargoes;
- When using the TRAKX Services, all activities performed by you must comply with the requirements of applicable laws and regulations, international economic sanctions programs, judicial, regulatory or administrative proceedings, or requests of public or governmental authorities, these GTC, the Additional GTC, the TRAKX Platform Rules and the various TRAKX guidelines. As such, TRAKX may carryout Know-Your-Transaction (KYT) procedures to make sure that those conditions are filled and that User fully complies with the above;
- Your use of the TRAKX Services shall not disturb public order, violate applicable laws and regulations, public morals or the legitimate interests and property of others, including any action that may interfere with, disrupt, adversely affect or prevent other Users from using the TRAKX Services;
- You agree not to use the TRAKX Services for market manipulation, insider trading or scamming (such as pump and dump schemes, wash trading or false trading volumes, self-trading or self- dealing, front running, quote stuffing, spoofing, layering or layering, whether or not expressly prohibited by applicable law);
- Without TRAKX's prior written consent, you may not modify, reproduce, duplicate, copy, download, store, transmit, broadcast, transfer, disassemble, disseminate, publish, delete or alter any copyright statement or label, or license, sublicense, sell, reproduce, design, rent, lease, trademark, grant security interests in, or create derivative works of, or otherwise take advantage of, any portion of the Properties.
- You can't:
 - use hyperlinks, web crawlers or robots, digital bots or robots, search engines or spiders or other automatic devices, programs, scripts, algorithms or methods, or any similar or equivalent manual process to access, obtain copy or monitor any part of TRAKX's properties, assets and rights, or reproduce or circumvent the navigational structure or presentation of the TRAKX Services in any way, in order to obtain or attempt to obtain any materials, documents or information in a manner not intentionally provided through the TRAKX Services;
 - attempt to gain unauthorized access to any part or function of TRAKX's properties, assets and rights, or to allow connection to the TRAKX Services or any TRAKX server or any other system or network of any TRAKX Service provided through the services by hacking, password mining or any other illegal act or prohibited or undesirable means;

- probe, scan or test vulnerabilities in the TRAKX Services or any network connected thereto, or violate any security or authentication measures on the TRAKX Services or any network connected to the TRAKX Services;
- reverse search, track or seek to track any information of any other User or visitor to the TRAKX Services;
- take any action that imposes an unreasonable or disproportionate burden on the infrastructure of TRAKX Services or TRAKX's systems or networks, or on the infrastructure of any system or network connected to TRAKX Services;
- use any device, software or routine program to interfere with the normal operation of the TRAKX Services or any Transaction on the TRAKX Services, or the use of the TRAKX Services by any other person;
- forge headers, impersonate or otherwise manipulate authentication to disguise your identity or the origin of any message or transmission you send to TRAKX; or
- use the TRAKX Services in a manner that is illegal or would result in subsequent illegal use.

By accessing the TRAKX Services, you agree that TRAKX has the right to investigate any violation of these GTC, to unilaterally determine whether you have violated these GTC, and to take action under applicable regulations and the GTC, without your prior consent or notice or information. Examples of such actions include, but are not limited to:

- Blocking and closing orders, operations and Transactions;
- Freezing your TRAKX Account, assets and Crypto-assets;
- Reporting the incident to the appropriate authorities;
- Publication of alleged violations and actions that have been taken to the extent provided by applicable law;
- Removal of any information you have posted that is found to be in violation.

Performance of Transactions

Upon successful registration and completion of the Know Your Client Procedure and approval by TRAKX for the opening of your TRAKX Account, you may purchase and trade CTIs, in accordance with the provisions of these GTC and the Rules of the TRAKX Platform (a "Transaction").

On the Website, the User may proceed to the following Transactions:

- Fiat currency deposit Transactions
- Fiat currency / Crypto-assets Transactions
- Crypto-assets / CTIs Transactions (USDC / CTIs and vice versa)
- Withdrawal Transaction in Crypto-assets

The exchange of Crypto-assets for other Crypto-assets, Crypto-asset Conversion (or "trading" in Crypto-assets) refers to transactions in which one Crypto-asset is exchanged for another Crypto-asset.

A suspended or blocked TRAKX Account may not be used to access the TRAKX Website and thus not be used for Transactions or any other operations in Crypto-assets and/or cash.

In order to use the Website and purchase and trade CTIs, Users must either (i) own USDC or (ii) purchase USDC, through the Website, in which case TRAKX provides a service of reception-transmission of orders on Crypto-assets on behalf of the User, in order for h/she/it to use the TRAKX Services.

In this context, the User is informed and acknowledges that the role of TRAKX consists in executing the User's order to deposit a certain amount of Crypto-assets which involve:

- exchanging Crypto-assets against another Crypto-assets (USDC);
- providing a service of reception-transmission of orders on Crypto-assets.

TRAKX Platform

The TRAKX Platform consists of the Crypto-asset exchange platform operated by TRAKX, where multiple buying and selling interests expressed by Users can interact in a way that results in buying or selling CTIs.

Orders

Spot Trading allows Users to access the TRAKX Platform which trades CTIs with other users in the market via the order book at the current market rate (also called spot price). Upon submitting an instruction to use the TRAKX Services for trading in Crypto-assets (an "Order"), your TRAKX Account will be immediately updated to reflect open orders, and your Orders will be included in the TRAKX order book to be matched with other Users' Orders and/or TRAKX's trading bot.

If one of your orders fully or partially matches another client's order, TRAKX will execute a trade. Once the Transaction is executed, your TRAKX Account will be updated to indicate that the order has been fully executed and closed, or that the order has been partially executed. The order will remain uncompleted until it is fully executed or cancelled in accordance with the paragraph below. To complete a Transaction, you authorize TRAKX to temporarily control the Crypto-assets involved solely for the execution and settlement of that Transaction.

Sometimes orders may not be executed due to insufficient matching orders. Users can mitigate this problem by cancelling their initial order and submitting a new order at a more competitive price. Alternatively, Users may execute an order at the market price.

Cancellation

For orders initiated via the TRAKX Services, you may only cancel them before they have been matched with the orders of other Users. Once your order has been matched with another User's order, you may not change, revoke or cancel the authorization given to TRAKX to execute the order. For any partially matched order, you may cancel the unmatched part of the order. TRAKX reserves the right to reject any cancellation request related to the order you submitted. If your account does not have a sufficient amount of Crypto-assets to execute an order, TRAKX may cancel the entire order, or execute a portion of the order with the amount of Crypto-assets available in your TRAKX Account (in each case, any Transaction-related fees payable to TRAKX shall be deducted as set forth in paragraph (c) below).

Pursuant to the provisions of the applicable law, the performance of a transaction Exchanging Crypto-assets or cash for other Crypto-assets or Converting Crypto-assets does not give rise to a right of withdrawal for the benefit of the User insofar as it concerns the "supply of goods or services whose price depends on fluctuations in the financial market beyond the control of the professional that may occur during the withdrawal period" (see article XI. 6. in the absence of the right of withdrawal).

TRAKX Staking CTIs

TRAKX Staking CTIs refers to the CTIs on TRAKX Platform where part or all of the underlying assets may be delegated to validators for Staking.

TRAKX decides the timing, assets and amount to be delegated to validators in accordance with predefined operational criteria, risk management rules and applicable regulations, taking into

account - without limitation - factors such as liquidity, holding periods, operational and technical considerations.

As a result, TRAKX reserve the right to carry out partial Staking and cannot guarantee that all Crypto-assets are staked at all times. Therefore, TRAKX Staking CTI may collect less rewards than if all the Crypto-assets were staked.

TRAKX Staking CTIs are subject to different risks, as mentioned on the General Risk Warning available on the Website:

- Liquidity risk - may occur due to restriction on transferability of the Crypto-assets staked;
- Risk of loss relating to Staking - may occur due to penalties on validators who negligently validate transactions due to inadvertent errors, technological problems and/or hacking, also known as - slashing - which may occur through downtime or double signing on the network, leading to Proof of Stake (PoS) blockchain validator failing to properly fulfil its obligations and leading to the potential loss of both validator and Users staked Crypto-assets or rewards.

9. Fees and Pricing

TRAKX Services in general (as described in the Annex I) are provided for a fee. When using TRAKX Services, you expressly and irrevocably agree to pay TRAKX the fees specified on the Website (for more information please click on the following link: <https://trakx.io/fees>). The fees may vary depending on the nature of the Transaction, the type of TRAKX Account, the amount of the Transaction and the type of Crypto-asset. TRAKX may, at its discretion, update the fees at any time. Any updated fees will apply to all sales or other transactions made after the effective date of the updated fees. You authorize TRAKX to deduct from your TRAKX Account any applicable fees owed by you under these GTC and as calculated on the fees page above.

Fees are governed by Annex I – Fees and Pricing Schedule, which forms an integral part of these Terms.

Auto-Invest for Crypto Traded Indices (CTI)

The User agrees to pay applicable transaction and platform fees as outlined in the TRAKX.io fee schedule.

Fees will be deducted automatically from the User's investment amount before allocation to the CTI.

10. Custody and Safeguarding of Client Assets

Custody and safeguarding arrangements are governed by Annex VII – Safeguarding of Client Assets.

11. Outsourcing and Third-Party Providers

Outsourcing arrangements are governed by Annex VI – Outsourcing and Third-Party Providers.

12. Conflicts of Interest

Conflicts of interest are identified, managed and disclosed in accordance with Annex IV – Conflicts of Interest Policy Summary.

13. Market Integrity and Abuse Prevention

TRAKX operates monitoring and surveillance mechanisms to detect market abuse and may suspend or cancel transactions where required.

14. Record Keeping and Audit Trail

TRAKX maintains comprehensive records in accordance with MiCA and applicable law.

15. Business Continuity and Wind-Down

TRAKX maintains a Business Continuity Plan and an orderly wind-down strategy.

16. Suspension, Restriction and Termination

Suspension of TRAKX Account

You agree that TRAKX shall have the right to immediately suspend your TRAKX Account (and any accounts beneficially owned by related entities or affiliates of TRAKX for affected Users), freeze or lock the Crypto-assets or funds in all such TRAKX Accounts, and suspend access to TRAKX and the Website and/or the Application, for any reason, including, but not limited to if TRAKX suspects that such TRAKX Accounts and their use violate these GTC, the Privacy Policy or any applicable laws and regulations (including any laws relating to anti-money laundering, anti-terrorist financing, international economic sanctions and embargoes), in case of failure by you to adequately respond to requests for customer knowledge information, in case of anti-social or illegal behavior attributable to you (insults, threats, abusive requests etc.), or if TRAKX has been informed that you have violated the GTC, or if TRAKX has reasonable grounds to suspect that you are a victim of fraud, theft, cyber-attack, extortion, manipulation, violence, blackmail or that you are unable to assess the risks associated with the investments.

You note that any User of a suspended TRAKX Account will not be able to access the TRAKX Services. You understand that TRAKX shall provide the User with information on the reasons for suspension or blocking where permitted by applicable law. You agree that TRAKX shall not be liable to you for any permanent or temporary modification of your TRAKX Account, or for the suspension or termination of its access to all or part of the TRAKX Services.

TRAKX reserves the right to retain and use transaction data, customer knowledge or other information relating to such TRAKX Accounts in accordance with applicable law. The above controls may also be applied in the following cases:

- The TRAKX Account is the subject of a public or governmental proceeding, criminal investigation or other pending litigation;
- TRAKX detects unusual activity on the TRAKX Account;
- TRAKX detects unauthorized access to the TRAKX Account;
- TRAKX is obliged to carry out checks pursuant to any instruction or order of a court or public, regulatory or governmental authority.

Termination of TRAKX Account

TRAKX shall have the right to terminate these GTC by closing your TRAKX Account, if applicable within a reasonable period of time for Consumers, and shall have the right, but not the obligation, to

permanently freeze the authorizations related to your TRAKX Account on TRAKX and to remove the corresponding TRAKX Account, in the following cases:

- After suspension of your TRAKX Account and/or TRAKX Services at the initiative of TRAKX ;
- You register yourself or another person as a User, directly or indirectly, including after TRAKX or another TRAKX entity has terminated an account in your name or in the name of such other person;
- You have withdrawn or transferred Crypto-assets from your TRAKX Account to an External Wallet for which you are not the beneficial owner;
- You have authorized a third party to use your TRAKX Account, without TRAKX priori consent;
- When these GTC are modified, you declare, explicitly or tacitly, your refusal to accept the modified GTC by requesting the cancellation of your TRAKX account or by any other means;
- You request that the TRAKX Services be terminated; and
- Any other exceptional, necessary or imperative circumstances in which TRAKX considers it necessary to terminate the TRAKX Services and/or the TRAKX Account.

If your TRAKX Account is terminated, account and transaction information will be kept secure for five (5) years in accordance with applicable regulations. In addition, if a transaction is not completed during the TRAKX Account termination process, TRAKX shall have the right to inform your counterparty of the situation at that time. You acknowledge that a termination initiated by you (including pursuant to data protection or other equivalent regulations) will also be subject to the termination process set forth above. You note that Users are responsible for removing any Crypto-assets within the timeframe specified by TRAKX. If TRAKX becomes aware that Crypto-assets or funds held in your TRAKX Account are from illegal sources, including stolen or not legally owned by you, TRAKX may, but is under no obligation to, freeze the relevant Crypto-assets or funds and block access to your TRAKX Account. If TRAKX freezes some or all of your Crypto-assets or funds and your TRAKX Account for these reasons, TRAKX may continue such freeze until any dispute or proceeding in connection with such Crypto-assets or funds is resolved and evidence of the resolution of such dispute for TRAKX has been provided to TRAKX in a form reasonably acceptable to TRAKX. TRAKX will not become involved in any such dispute or in the resolution of the dispute. You agree that TRAKX shall have no liability for any such freeze, or for your inability to withdraw Crypto-assets or funds or execute transactions during the period of any such freeze. You also agree that TRAKX shall not be liable for any loss of profits, revenue, value, earnings or data, or for direct immaterial and indirect or consequential damages that you suffer as a direct or indirect result of TRAKX freezing your assets and your TRAKX Account.

Auto-Invest for Crypto Traded Indices (CTI)

Either Party may terminate the Auto-Invest strategy by providing prior notice. The User agrees to pay applicable transaction and platform fees as outlined in the TRAKX.io fee schedule.

Upon termination, TRAKX.io will cease executing Auto-Invest transactions for the User, and any remaining funds in the User's account will be retained as per the Platform's general terms and conditions.

Funds remaining after termination of the TRAKX Account

Except as set forth in paragraph 4 below, once a TRAKX Account is terminated, all amounts owed to TRAKX (including fees and debts owed to TRAKX) shall be immediately payable to TRAKX. After payment of all fees to TRAKX (if any), Users shall have five (5) business days to withdraw all Crypto-assets or funds from the TRAKX Account.

Investigations

TRAKX retains custody of the Crypto-assets, funds and data/information of the User which may be handed over to public and governmental authorities in case of suspension/termination of TRAKX Accounts resulting from investigations of fraud, violation of the law or violation of these GTC.

Inactive Account

Notwithstanding any provision of this Section VI, TRAKX may send a written notice to you to close all your open positions and remove all your Crypto-assets from your TRAKX account within thirty (30) days of the notice. If you fail to do so, TRAKX may:

- consider your TRAKX account as inactive;
- close any open position in any TRAKX Product or TRAKX Service;
- transfer such inactive account (including any Crypto-assets contained therein) to an affiliate of TRAKX or to any third party custodian when deemed reasonably necessary by TRAKX ;
- if necessary for a transfer described in paragraph 5(c) above, convert the Crypto-assets into another type of asset supported by the relevant TRAKX affiliate or any third party custodian. For the avoidance of doubt, neither TRAKX nor any third party custodian shall be liable for any loss of profits, earnings, revenue, value, or data resulting from such conversion.

Deletion of the TRAKX Account by the User

Users may request the deletion of their TRAKX Account at any time by sending an email to TRAKX. Such deletion shall be carried out by TRAKX without delay and at no cost to the User.

Please note that in order to comply with its legal obligations, TRAKX implements a monitoring process for the purpose of combating money laundering and terrorist financing and the application of international financial and economic sanctions, including embargoes. Accordingly, certain data will be retained for five (5) years after the end of the business relationship, including when it follows the deletion of the TRAKX Account by you.

Responsibility

You acknowledge that you cannot hold TRAKX responsible for the termination, suspension or deletion of TRAKX Accounts / TRAKX Services, and you understand that TRAKX cannot disclose, and keeps confidential, the reasons why the TRAKX Account or TRAKX Services have been suspended, terminated or deleted.

17. Limitation of Liability

Exclusion of liability and guarantees

To the extent permitted by law, the TRAKX Services, the materials provided by TRAKX and any products, services or other items provided by or on behalf of TRAKX are provided "as is" and "as available". TRAKX expressly disclaims, and you hereby waive, any and all warranties of any kind, whether express or implied, including, without limitation, warranties of merchantability, fitness for a particular purpose, non-infringement, or warranties arising out of course of performance, course of dealing, or usage of trade. Without limiting the foregoing, TRAKX does not represent or warrant that the Website, the TRAKX Services, other general information available or in any medium offered by TRAKX, is accurate, complete, reliable, up-to-date, error-free or free of viruses or other harmful

components. Nothing in these Terms excludes or limits liability where such exclusion or limitation is prohibited under MiCA, consumer law or other applicable regulations.

TRAKX does not guarantee that any order will be executed, accepted, registered or remain open.

Except for the express representations, agreements and rules set forth in these GTC, you acknowledge and agree that in conducting your transactions on your TRAKX Account, you have not relied on any other representations or agreements, whether written or oral, for the use and access of the TRAKX Services. To the extent permitted by law, without limiting the foregoing, you understand and agree that TRAKX shall not be liable for any loss or damage of any kind resulting from or related to: (a) any inaccuracy, absence or omission on the Crypto-assets pricing data, (b) any error or delay in the transmission of such data, (c) an interruption in the availability of such data, (d) regular or unscheduled maintenance performed by TRAKX and interruption of service and any changes resulting from such maintenance, (e) any damage suffered by the actions, omissions or violations of these GTC of Use of other users, (f) any damage caused by illegal actions of other third parties or actions not authorized by TRAKX ; and (g) other exemptions mentioned in the disclaimers and platform rules issued by TRAKX. The disclaimer applies only within the limits of applicable law, in particular consumer law.

In some cases, TRAKX uses external research (a) sourced from an external research provider and (b) based on that party's own quantitative models.

Users acknowledge that TRAKX is not responsible for and shall not be held liable for any discontinuation of research, inaccuracies or incompleteness in models/research, technological disruptions that hinder receipt of data, implementation errors or delays in the implementation of the said data, conflicts of interest issues, reputation issues, or regulatory issues arising from the research provider.

Liabilities and Limitation of Liability of TRAKX

In no event shall TRAKX, its affiliates and their respective shareholders, members, directors, officers, employees, attorneys, agents, representatives, suppliers or subcontractors be liable for any direct or indirect, special, punitive, consequential or other damages (including, without limitation, direct or indirect damages for loss of data, information, income, profits or other business or financial benefits) resulting from User's failure to perform or properly perform the GTC, fraud, negligence or error, breach of security rules or data breach attributable to or permitted by the User's failure to comply with all or part of the security rules and principles which the User is responsible for complying with, in the event of Force Majeure, in the event of a technical failure not attributable to TRAKX or to the action of third parties. To the extent permitted by law, in no event shall TRAKX, its affiliates and their respective shareholders, members, directors, officers, employees, attorneys, agents, representatives, suppliers or subcontractors be liable for any performance, non-performance or mis-performance of TRAKX Services, or any other product, service or other item provided by or on behalf of TRAKX and its affiliates, whether under contract, statute, or otherwise, even if TRAKX has been advised of the possibility of the occurrence of such damages, except in the case of a final court decision that such damages were the result of gross negligence, fraud, willful misconduct or intentional violation of law by TRAKX.

To the extent permitted by law, the liability of TRAKX, its affiliates and their respective shareholders, members, directors, officers, employees, attorneys, agents, representatives, suppliers or subcontractors arising out of or in connection with the Services provided by or on behalf of TRAKX and its affiliates, in respect of any performance, non-performance or improper performance of the TRAKX Services, or any other product, service or other item, whether in contract, statute, liability or

otherwise, shall not exceed the amount of fees paid by you to TRAKX under these GTC during the twelve month period immediately preceding the event giving rise to the liability claim.

By using your TRAKX Account, you acknowledge as a User that you are aware of the risks of TRAKX Services and the Crypto-assets. Thus: Users are solely responsible for the choices they make, in particular with regard to the use of TRAKX Services and their choices and methods; To the extent permitted by law, TRAKX shall not be liable for any loss of profits, income, value, revenue or data, or for any direct, indirect or consequential damages suffered by the User or a third party and which are not attributable to TRAKX; TRAKX shall not be liable for the instability of the price of the Crypto-assets due to their high volatility; The use of the Website and the Services may be temporarily suspended for legal or technical reasons, which may affect download times and accessibility of the TRAKX Services; TRAKX shall not be liable for access problems to the Website and the Services for any reason, including, but not limited to, any access problem caused by the User or a third party, by a necessary update or maintenance, or in case of Force Majeure. TRAKX shall not be liable for any financial consequences resulting from the impossibility of the User to access the Website and/or to use the TRAKX Services; TRAKX shall not be liable to the User in case of fraud by the User, negligence or error by the User, in case of force majeure, in case of technical failure or in case of an act of a third party; TRAKX shall not be liable for the unlawful or improper use of the Crypto-assets by any User or third party or for the loss or theft of Crypto-assets in any way after their removal from the public address indicated by the User; TRAKX shall not be liable for matters beyond its control and for any subsequent financial damage, including, but not limited to, any disclosure to a third party, whether intentionally or unintentionally, of the User's login, password or other authentication method, the loss (including theft) by the User of his personal or business device(s) such as cell phones or computers, and the acts of third parties, including offences or criminal acts, or a breach of security of the User of any kind, and any direct or indirect damage resulting therefrom. TRAKX shall not be liable for any problems or consequential financial damages arising from cyber-attacks, malware, ransomware, crashes, hacker attacks or viruses (whether or not affecting the computer). The disclaimer shall only apply to the extent permitted by applicable law, in particular consumer law.

Auto-Invest for Crypto Traded Indices (CTI)

User Responsibilities

The User must:

- Provide accurate and up-to-date account details to facilitate the Auto-Invest transactions.
- Maintain sufficient funds in their linked account/wallet to execute the scheduled Auto-Invest transactions.
- Select a single Target CTI and define the Investment Amount during the setup process.

The User agrees to make payments exclusively via wire transfer to the designated TRAKX.io bank account:

- IBAN: FR76 3000 3031 4000 0207 0681 786
- SWIFT: SOGEFRPP

Payments must be made on the first day of each month to execute the Auto-Invest strategy. The User must include their UID and "Auto-Invest" in the reference of the bank transfer.

The User acknowledges and accepts the inherent risks associated with cryptocurrency investments, including but not limited to market volatility and loss of principal.

TRAKX.io Responsibilities

TRAKX.io agrees to:

- Convert the User's received fiat currency (e.g., EUR) into USDc upon receipt of the wire transfer.
- Allocate the converted USDc to purchase the specified CTI and execute the Auto-Invest transactions in accordance with the parameters specified by the User in the "Auto-Invest" page.
- Aim to conduct the conversion of fiat to USDc and the purchase of the CTI within the first days of the month.
- Provide transparency by displaying transaction records, investment progress, and current holdings in the User's account.
- Notify the User of any failed transactions due to non-receipt of funds or technical issues.

TRAKX.io does not guarantee any specific investment performance or returns.

18. No investment or financial advice

TRAKX is not your investment, tax or financial advisor and has no fiduciary relationship or other obligation whatsoever to you with respect to any transaction or other decision or activity made by you while using the TRAKX Services. However, TRAKX may provide, where applicable, Crypto-asset advice within the meaning of MiCA. Such advice is strictly limited to the scope and conditions defined under MiCA and does not constitute investment advice, financial advice, trading advice or any other form of advice outside the regulatory framework applicable to Crypto-asset advice. Except for such Crypto-asset advice where expressly provided, no communication or information provided to you by TRAKX is intended to be considered or construed as investment advice, financial advice, trading advice or any other type of advice, nor as a recommendation that you buy, earn, sell or hold any Crypto-assets.

Unless otherwise specified in these GTC, all transactions are executed automatically, based on the parameters of your instructions or orders and in accordance with the trade execution procedures published on the Website, and you are solely responsible for determining whether an investment, investment strategy or related transaction is suitable for you based on your personal investment objectives, financial situation and risk tolerance, and you will be solely responsible for any resulting loss or liability. Before making a decision to buy, sell or hold a Crypto-asset, you should therefore conduct your own reasonable due diligence and may consult your financial advisors before making any investment decision. You should consult with legal or tax professionals regarding your particular situation.

TRAKX shall not be liable for any decisions you make to buy, sell or hold Crypto-assets based on information provided or made available or accessible by TRAKX.

19. Compliance with Applicable Laws

You acknowledge that it is your responsibility to comply with local laws relating to the lawful use of the TRAKX Services in your jurisdiction and any other laws and regulations applicable to you.

You acknowledge that you must also take into account, to the extent of local laws and regulations applicable to you, all aspects of taxation, levies, other fundraising, reporting and remittance of any amounts as arranged by the relevant tax authorities. All Users of the TRAKX Services acknowledge and declare that their funds come from legitimate, legal and lawful sources and do not originate from illegal activities or activities prohibited under international economic regulations or sanctions. Users agree that TRAKX will request them to provide or collect the necessary information and documents in

accordance with applicable laws, governmental instructions or orders to verify the legality of the sources and use of their funds. TRAKX shall cooperate with local and global law enforcement authorities and shall be obliged to seize, freeze, terminate TRAKX Accounts and funds of Users reported or investigated by legal mandate in accordance with applicable law.

20. Data Protection and Confidentiality

Personal data is processed in accordance with GDPR and applicable data protection laws.

Confidential information is disclosed only on a need-to-know or regulatory basis.

The Client's data may be transferred with respect to the "travel rule", as specified in Article 5 of Annex 5 of these GTC.

21. Amendments to the Terms

TRAKX may amend these Terms to reflect regulatory or operational changes.

Material changes are notified to Clients in advance where required.

22. Dispute Resolution

Complaints Handling

In the event of any complaint relating to the provision of the TRAKX Services, Users are invited to contact TRAKX in the first instance in order to allow TRAKX to address the matter through its internal complaints handling process.

TRAKX has implemented an effective and transparent Complaints Handling Procedure, in accordance with applicable laws and regulations, including Article 71 of Regulation (EU) 2023/1114 (MiCA) and the related regulatory technical standards.

Complaints must be submitted free of charge and in writing, by email, to the following address: complaints@trakx.io

Users are encouraged to indicate in the subject line: "Complaints (dissatisfaction)" and to provide all relevant information necessary for the examination of the complaint, including a description of the issue and the reasons for dissatisfaction.

TRAKX will acknowledge receipt of the complaint without undue delay and no later than two (2) working days from receipt.

TRAKX will investigate the complaint fairly and promptly and will provide a written response within a maximum period of one (1) month from receipt of the complaint.

In the case of complex complaints, this period may be extended to a maximum of two (2) months, in which case the User will be informed of the reasons for the delay and the expected timeframe.

Where a complaint is rejected in whole or in part, TRAKX will provide the User with a clear explanation of the reasons and information on available remedies.

Further details regarding the complaints handling process, including admissibility conditions, timelines and record-keeping, are available in the Complaints Handling Procedure published on the TRAKX website and may be provided upon request.

Mediation

If the User qualifies as a consumer within the meaning of the French Consumer Code and remains dissatisfied with the response provided by TRAKX, or in the absence of a response within the applicable timeframe, the User may refer the matter to the AMF Ombudsman, in accordance with applicable law.

AMF Ombudsman

Autorité des marchés financiers
17, place de la Bourse
75082 Paris Cedex 02 – France
Website: www.amf-france.org

Class Action Waiver

Except as provided by consumer law, you and TRAKX agree that any claims relating to these GTC or your relationship with TRAKX as a User of the TRAKX Services (whether based on contract, tort, statute, fraud, misrepresentation, or any other theory, and whether the claims arise during or after the termination of these GTC) shall be brought against the other party in a court of law on an individual basis only - and not as a plaintiff or member of a class action. You and TRAKX further agree to waive any right to have such claims brought, heard or arbitrated in a class, representative or private attorney general action to the extent permitted by applicable law. Combining or consolidating individual arbitrations into a single arbitration is not permitted without the consent of all parties, including TRAKX.

Applicable Law – Jurisdiction Clause

The present GTC is written in English. In the event that they are translated into one or more foreign languages, only the English text will be deemed authentic in the event of a dispute.

This platform is governed by French law. The proposed contents are thus in conformity with the French legislation in force. The Website editor cannot be held responsible in the event of non-compliance with the legislation of the country of connection.

These terms and conditions and the relationship between TRAKX and the user are also governed by French law. This is the case for the substantive and formal rules, notwithstanding the places of performance of the substantial or accessory obligations.

In the event of a dispute as to the interpretation or execution of the GTC, the parties shall make their best efforts to find an amicable resolution. In the absence of an amicable resolution, the French courts shall have sole jurisdiction to hear any dispute arising from the application of these GTC or resulting directly or indirectly from the use of the platform. The reference language for the settlement of any disputes is French.

These stipulations relating to the applicable law and the competent jurisdictions are applicable subject to the imperative provisions which would have a vocation to apply to the user in his capacity of consumer within the meaning of the French Consumer Code if necessary (in particular article R. 631-3 of the French Consumer Code).

By exception, and in the absence of amicable resolution of a dispute between TRAKX and a commercial user within the meaning of article L. 121-1 of the French Commercial Code, the dispute will be under the exclusive jurisdiction of the commercial courts of Paris, notwithstanding plurality of

defendants or third-party proceedings, even for emergency procedures or for protective procedures, in appeal or by petition.

23. Miscellaneous

Independence of the Parties

TRAKX is an independent entity and is not your agent in the performance of the GTC. The GTC shall not be construed as facts or evidence of any association, joint venture, partnership, or franchise between the parties to the GTC.

Entire agreement

Except stipulations arising out of management agreement concluded between the Parties, the GTC constitute the entire agreement between the parties with respect to the use of the TRAKX Services and supersede all prior written or oral agreements governing the TRAKX Account and the TRAKX Services. No usage of trade or other regular practice or method of negotiation between the parties shall be used to modify, interpret, supplement or alter these GTC.

If any part of these GTC is held to be invalid or unenforceable for any reason or to any extent, the remainder of these GTC shall remain valid and enforceable and the invalid or unenforceable portion shall be enforced to the fullest extent permitted by law pending resolution of the dispute, replacement of that provision and/or termination of your TRAKX Account.

Cases of force majeure

TRAKX shall not be liable for any delay or failure to perform as required by these GTC due to any cause or condition beyond TRAKX's reasonable control, which could not be reasonably foreseen at the time of entry into force of the GTC and the effects of which cannot be avoided by appropriate measures and which prevents the performance of its obligation. If the impediment is temporary, the performance of the obligation shall be suspended unless the resulting delay justifies termination of the contract. If the impediment is permanent, the contract shall be terminated by operation of law and the parties shall be released from their obligations under the conditions provided for by the applicable law.

Assignment

You may not assign or transfer any right to use the TRAKX Services or any of your rights or obligations under these GTC without TRAKX's prior written consent, including any rights or obligations related to law enforcement or change of control. Notwithstanding the foregoing, TRAKX may, without User's prior written consent, and upon notice to User, transfer, assign or subcontract any of its rights under the GTC to any of its affiliates or to any other entity that acquires direct or indirect control of TRAKX, or to any other entity in which TRAKX holds more than thirty percent (30%) of the total voting interests. In this case, the rights and obligations of the User shall remain the same.

For the purposes of these GTC, the GTC "control" or "change of control" shall have the meaning given to them in Article L. 233-3 et seq. of the French Commercial Code.

Waiver

A party's failure to require performance of any provision will not affect that party's right to require performance at any time thereafter. At the same time, a party's waiver of its right to seek redress for the other party's breach of these GTC or any provision of the applicable GTC shall not constitute a

waiver of redress by that party with respect to any other past, present or future breach by the other party of the GTC or the provision itself.

No right of withdrawal

Articles L. 221-28 2° and 13° of the French Consumer Code specify that "the right of withdrawal cannot be exercised for contracts:

- the supply of goods or services whose price depends on fluctuations in the financial market beyond the control of the trader and which may occur during the withdrawal period, and
- the supply of digital content not provided on a tangible medium, the performance of which has begun after the consumer has given his express prior consent and expressly waived his right of withdrawal".

Pursuant to these texts, the User expressly acknowledges and accepts that the right of withdrawal cannot be exercised for Transactions involving Crypto-assets. The User wishes that Transactions involving Assets be carried out immediately. Therefore, the User expressly agrees in advance and expressly waives his right of withdrawal.

Disclaimer for TRAKX website

Any link to third-party websites does not imply endorsement by TRAKX of any product, service, information or disclaimer contained therein, nor does TRAKX guarantee the accuracy of the information contained therein. If you suffer any loss while using these third-party products and services, TRAKX shall not be liable for such loss. In addition, because TRAKX has no control over the GTC of use or privacy policies of third-party websites, you should read and understand those GTC of use and policies carefully.

24. Final Provisions

Invalidity of one provision does not affect the remainder.

These Terms constitute the entire agreement between TRAKX and the Client.

PART IV – ANNEXES

ANNEX I - FEES AND PRICING SCHEDULE

1. General Principles

TRAKX applies a transparent, non-discriminatory and ex-ante disclosed fee structure, in accordance with Article 66 of Regulation (EU) 2023/1114 (MiCA).

All applicable fees are displayed to the Client prior to the execution of any transaction and are accessible at all times through the TRAKX platform and contractual documentation.

Fees are expressed as a percentage of the transaction amount unless otherwise specified.

2. Trading Fees

2.1. Standard Trading Fees (Non-TRKX Holders)

For Clients not benefiting from token-based discounts:

- Maker fee: 0.35%
- Taker fee: 0.35%

2.2. Preferential Fees – TRKX Holder Discount Program

Fee discounts linked to TRKX holdings do not constitute investment advice or a recommendation to acquire or hold TRKX tokens.

TRAKX applies a progressive discount scheme based on the amount of TRKX utility tokens held by the Client.

Discounts apply directly to the standard 0.35% trading fee and are calculated automatically.

Level	TRKX Holdings	Discount on Standard Trading Fee (0.35%)
Zooplankton	≤ 10,000	0%
Plankton	≥ 10,000	10%
Shrimp	≥ 40,000	15%
Crab	≥ 100,000	20%
Octopus	≥ 300,000	25%
Fish	≥ 800,000	30%
Dolphin	≥ 2,000,000	35%

Shark	≥ 5,000,000	40%
Whale	≥ 10,000,000	45%
Humpback	≥ 20,000,000	50%
Leviathan	≥ 40,000,000	55%

3. Specific Product Fees

3.1. USDC Earn Product

- Maker fee: 0.10%
- Taker fee: 0.10%

3.2. Auto-Invest (Recurring Purchases)

Monthly Volume	Fee
< €250	1.00%
€250 – €5,000	0.70%
> €5,000	0.50%

3.3. OTC Operations

- OTC Deposit Fee: 0.50%
- OTC Withdrawal Fee: 0.50%

4. Deposits, Withdrawals and External Costs

Crypto-asset deposits are free of charge.

Withdrawal fees depend on the relevant blockchain network and are disclosed prior to execution.

TRAKX does not charge account maintenance fees.

External costs beyond TRAKX's control (e.g. gas fees, banking fees) may apply.

ANNEX II - RISK DISCLOSURE

1. General Risk Warning

Crypto-assets are volatile instruments that may result in the partial or total loss of the invested capital. Past performance is not indicative of future results.

Clients should only use TRAKX's services if they fully understand the associated risks.

2. Market Risks

- extreme price volatility;
- liquidity constraints;
- sudden market dislocations;
- correlation risk within index-based products.

3. Operational Risks

- system outages or degradation;
- dependency on third-party service providers;
- errors in index calculation or execution processes.

4. ICT and Cybersecurity Risks

- infrastructure failures;
- cyber-attacks, hacking, malware;
- data breaches or unauthorised access.

5. Legal and Regulatory Risks

- changes in crypto regulation;
- regulatory enforcement actions;
- risk of service restriction or suspension due to compliance obligations.

6. AML / Financial Crime Risks

- risk of misuse of Crypto-assets for illicit activities;
- enhanced monitoring may lead to transaction delays or account restrictions.

7. Reputational Risk

- loss of trust due to adverse publicity;
- third-party failures impacting TRAKX's reputation.

ANNEX III - COMPLAINT HANDLING PROCEDURE

1. Right to Lodge a Complaint

Clients may submit complaints regarding TRAKX's services, execution, fees or conduct.

2. Submission of Complaints

Complaints may be submitted:

- electronically via the TRAKX platform; or
- by email to the designated compliance contact.

Complaints must include sufficient detail to allow proper assessment.

3. Handling Process

Complaints are acknowledged promptly.

TRAKX investigates complaints independently and objectively.

A reasoned response is provided within regulatory timeframes, and in any case within two (2) months of receipt of the complaint.

4. Record Keeping

All complaints and related correspondence are recorded and retained for at least five (5) years.

5. Escalation

If the Client is not satisfied, the complaint may be escalated to the competent authority or alternative dispute resolution mechanisms, where applicable.

ANNEX IV - CONFLICTS OF INTEREST POLICY SUMMARY

1. Identification of Conflicts

TRAKX has identified potential conflicts arising from:

- acting as principal in transactions;
- index design and rebalancing decisions;
- remuneration structures;
- relationships with third-party providers.

2. Mitigation Measures

TRAKX implements:

- organisational separation of functions;
- information barriers;
- independent compliance oversight;
- predefined execution methodologies.

3. Disclosure

Where conflicts cannot be fully mitigated, TRAKX discloses them to Clients in a clear and durable medium prior to service provision.

4. Review

The Conflicts of Interest Policy is reviewed periodically and updated as required.

ANNEX V - AML, CFT AND TRANSACTION MONITORING DISCLOSURE

1. Regulatory Framework

TRAKX SAS (“TRAKX”) is subject to applicable European and national laws on the prevention of money laundering and terrorist financing, including, inter alia:

- Regulation (EU) 2023/1114 (MiCA);
- Directive (EU) 2015/849, as amended (AMLD);
- Applicable French AML/CFT legislation;
- Guidance and technical standards issued by ESMA and the AMF.

TRAKX applies a risk-based approach to AML/CFT, proportional to the nature, scale and complexity of its crypto-asset trading services.

2. Customer Due Diligence (CDD)

Prior to granting access to its services, TRAKX performs customer due diligence, including:

- identification and verification of the Client’s identity;
- verification of beneficial ownership, where applicable;
- assessment of the purpose and intended nature of the business relationship.

Identity verification is performed using secure digital verification tools provided by regulated third-party service providers, including biometric verification and liveness detection.

Enhanced Due Diligence (“EDD”) measures may be applied in higher-risk situations, including but not limited to:

- politically exposed persons (PEPs);
- high-risk jurisdictions;
- unusual or complex transaction patterns.

3. Ongoing Monitoring

TRAKX conducts ongoing monitoring of business relationships to ensure that transactions are consistent with the Client’s risk profile and declared activity.

Monitoring includes:

- transaction pattern analysis;
- behavioural monitoring;
- screening against sanctions and watchlists.

4. Blockchain Analytics and Transaction Monitoring

TRAKX uses specialised blockchain analytics solutions to monitor crypto-asset transactions, identify suspicious activities and assess exposure to illicit sources of funds.

Transaction monitoring includes, inter alia:

- detection of links to illicit wallets or sanctioned addresses;

- monitoring of transaction velocity and structuring;
- identification of typologies associated with financial crime.

Where suspicious activity is detected, TRAKX may:

- delay or block transactions;
- request additional information from the Client;
- restrict or terminate the business relationship;
- submit Suspicious Activity Reports to competent authorities, where required by law.

5. Travel Rule Compliance

For transfers of crypto-assets subject to the Travel Rule, TRAKX ensures the secure transmission and receipt of required originator and beneficiary information.

More specifically, the Client understands that, pursuant to MiCA and Regulation (EU) 2023/1113 on information accompanying transfers of funds and certain crypto-assets, TRAKX is required to collect, verify and transmit the identity information of the originator and the beneficiary to the recipient's CASP for each Crypto-asset transfer.

The required information includes, in particular: (i) the name; (ii) the DLT address and Crypto-asset account number of the originator/beneficiary, where such an account exists and is used to process the transfer or transaction; (iii) the Crypto-asset account number of the originator/beneficiary, in cases where a Crypto-asset transfer is not recorded on a network using distributed ledger technology or similar technology; (iv) the address of the originator, including the country name, official personal document number and customer identification number, or, failing that, the date and place of birth of the originator; and (v) the current Legal Entity Identifier (LEI) or, failing that, any other equivalent official identifier available of the originator.

In this respect, the Client understands and authorises TRAKX to collect the above data and to transmit it in accordance with the applicable regulations referred to above.

Transfers may be delayed or rejected if the required information is missing, incomplete or inconsistent.

6. Record Keeping

AML/CFT-related records, including CDD documentation and transaction monitoring outputs, are retained for at least five (5) years, or longer where required by law.

7. Client Impact

Clients acknowledge that AML/CFT obligations may result in:

- onboarding delays;
- transaction holds;
- temporary or permanent account restrictions.

Such measures do not give rise to liability on the part of TRAKX where they are taken in compliance with applicable laws.

ANNEX VI - OUTSOURCING AND THIRD-PARTY PROVIDERS

1. General Principles

In the provision of its crypto-asset trading services, TRAKX relies on a limited number of carefully selected third-party service providers for specific technical, compliance and operational functions.

Outsourcing arrangements are governed by an internal Outsourcing Policy aligned with MiCA, ESMA guidelines and French regulatory expectations.

TRAKX remains fully responsible for compliance with all regulatory obligations, notwithstanding any outsourcing.

2. Scope of Outsourced Services

Outsourced services may include, without limitation:

- digital identity verification (KYC);
- transaction monitoring and blockchain analytics;
- Travel Rule data exchange;
- market surveillance and detection of market abuse;
- IT infrastructure and software-as-a-service components.

3. Selection and Due Diligence of Providers

Prior to entering into any outsourcing arrangement, TRAKX conducts due diligence covering:

- regulatory standing and reputation;
- technical competence and security measures;
- financial soundness and operational resilience;
- data protection and confidentiality safeguards.

Providers are selected on a **best-of-breed** basis and are subject to ongoing oversight.

4. Critical Outsourcing Arrangements

Certain outsourced services are classified as **critical or important** due to their impact on compliance, operational continuity or client protection.

For such arrangements, TRAKX ensures:

- robust Service Level Agreements (SLAs);
- audit and access rights;
- business continuity and exit provisions.

5. Data Protection and Confidentiality

Where outsourced services involve access to personal or sensitive data, TRAKX ensures compliance with:

- Regulation (EU) 2016/679 (GDPR);
- applicable national data protection laws.

Data access is strictly limited to what is necessary for service provision.

6. **Sub-outsourcing**

Subcontracting by third-party providers is prohibited unless expressly authorised by TRAKX and subject to equivalent safeguards.

7. **Business Continuity and Substitution**

TRAKX includes the unavailability of third-party providers in its **Business Continuity Plan**.

Where feasible, TRAKX identifies alternative providers to mitigate dependency risks.

8. **Client Acknowledgement**

Clients acknowledge that:

- certain services rely on third-party providers;
- temporary service disruptions may occur due to third-party incidents.

TRAKX shall not be liable for failures attributable exclusively to third-party providers, except where required by mandatory law.

ANNEX VII - SAFEGUARDING OF CLIENT ASSETS

1. Purpose and Scope

This Annex sets out the principles, organisational arrangements, technical measures and internal controls implemented by TRAKX SAS ("TRAKX") to safeguard Clients' crypto-assets and, where applicable, funds, in accordance with Regulation (EU) 2023/1114 on Markets in Crypto-assets ("MiCA"), applicable French law and relevant regulatory guidance.

This Annex applies to all Clients using TRAKX's crypto-asset trading services and forms an integral part of the Terms and Conditions.

2. General Safeguarding Principles

TRAKX acts honestly, fairly and professionally in the best interests of its Clients and implements safeguarding arrangements designed to:

- (a) protect Clients' ownership rights over their crypto-assets and funds;
- (b) prevent misuse, loss, theft, fraud or unauthorised use of Client assets;
- (c) mitigate operational, technological and third-party risks;
- (d) ensure orderly access to and recovery of Client assets.

Safeguarding arrangements are proportional to the nature, scale and complexity of TRAKX's activities and are subject to periodic review, testing and enhancement.

3. Segregation of Client Assets

TRAKX maintains clear segregation between:

- (a) crypto-assets and funds held on behalf of Clients; and
- (b) TRAKX's own assets and proprietary liquidity.

Client crypto-assets are not recorded on TRAKX's balance sheet as its own assets and are not available to satisfy claims of TRAKX's creditors, subject to applicable insolvency law.

TRAKX maintains accurate internal accounting records enabling the prompt identification of each Client's holdings at any time..

4. Custody Model and Use of Third Parties

Client crypto-assets held in custody are segregated from TRAKX's own assets and are not part of TRAKX's insolvency estate, subject to applicable law.

Custody of crypto-assets held by TRAKX on behalf of a Client refers to the safekeeping of private cryptographic keys or equivalent credentials enabling transactions on distributed ledger networks, performed within the framework of the Client's TRAKX Account.

Custody services may be performed:

- (a) directly by TRAKX; and/or
- (b) through carefully selected third-party crypto-asset service providers, including specialised custodians and infrastructure providers.

Any third-party custodian is subject to:

- (a) due diligence prior to appointment;
- (b) contractual safeguards addressing segregation, security, audit rights, liability and exit;
- (c) ongoing monitoring in accordance with TRAKX's Outsourcing Policy.

Notwithstanding any outsourcing, TRAKX remains fully responsible towards clients for compliance with MiCA safeguarding obligations.

5. Access Controls and Security of Private Keys

TRAKX implements strict controls over means of access to Client crypto-assets, including:

- (a) role-based access controls;
- (b) multi-factor authentication;
- (c) secure key management procedures;
- (d) segregation of duties.

Access to private keys or equivalent credentials is strictly limited to authorised personnel on a need-to-know basis and subject to logging, monitoring and internal controls.

6. Use of Client Assets

Client crypto-assets and funds shall not be used for TRAKX's own account, nor lent, pledged, rehypothecated or otherwise reused, except:

- (a) where required by applicable law;
- (b) in connection with staking or lending functionalities explicitly embedded in certain products and disclosed to Clients; or
- (c) where expressly authorised by the Client and permitted by law.

Any authorised use of Client assets is clearly disclosed, documented and subject to appropriate safeguards.

7. Blockchain Protocols, Supported Assets and Forks

TRAKX does not own, control or operate the underlying blockchain protocols governing the operation of crypto-assets. Such protocols are generally open-source and subject to decentralised governance.

TRAKX does not guarantee the functionality, security or uninterrupted operation of blockchain networks, which may be subject to changes, upgrades or forks.

Forks or protocol changes may materially affect the availability, value, functionality or designation of crypto-assets held in custody. TRAKX is under no obligation to support, distribute or enable access to assets resulting from forks unless expressly stated.

Only crypto-assets expressly supported by TRAKX may be deposited, held or transferred through a TRAKX Account. TRAKX assumes no responsibility for unsupported crypto-assets sent to Client wallets and may be unable to recover them.

TRAKX may discontinue support for a crypto-asset at its discretion. Clients are responsible for transferring or disposing of such assets prior to delisting.

8. Withdrawals and Client Control

Clients may request the withdrawal of crypto-assets held in custody by transferring them to an external wallet, subject to:

- (a) network availability and maintenance;
- (b) compliance with applicable laws, sanctions and AML/CFT requirements;
- (c) absence of immobilisation linked to the use of specific services.

Withdrawals may be delayed, restricted or blocked where required by law, court order, regulatory obligation or where suspicious activity is detected.

9. Reconciliations and Record Keeping

TRAKX performs regular reconciliations between:

- (a) internal records;
- (b) blockchain data;
- (c) records received from third-party custodians, where applicable.

Records relating to Client assets are retained for at least five (5) years or longer where required by law or by a competent authority.

10. Safeguarding of Client Funds

Where TRAKX holds Client funds, such funds are:

- (a) kept separate from TRAKX's own funds; and
- (b) held in accounts dedicated to Clients.

TRAKX implements controls to prevent the use of Client funds for its own account.

11. Insolvency and Client Protection

In the event of TRAKX's insolvency, Client crypto-assets and funds are segregated from TRAKX's estate and protected from claims by TRAKX's creditors, subject to applicable insolvency law.

Clients acknowledge that recovery of assets may be subject to procedural timelines imposed by insolvency proceedings.

12. Risk Disclosure and Limitation of Responsibility

Despite the safeguards implemented, clients acknowledge that custody of crypto-assets involves inherent risks, including technological failures, cyber-attacks, protocol vulnerabilities and third-party failures.

TRAKX assumes no liability for fluctuations in value of crypto-assets or losses arising from events beyond its reasonable control, except where required by mandatory law.

13. Client Information and Transparency

TRAKX provides Clients with clear and up-to-date information regarding:

- (a) the safeguarding model applied;
- (b) the use of third-party custodians, where applicable;
- (c) material changes affecting the protection of Client assets.

14. Review and Updates

Safeguarding arrangements are reviewed periodically and updated to reflect regulatory developments, changes in TRAKX's business model and evolving operational or technological risks.

ANNEX VIII – CUSTODY AND ADMINISTRATION AGREEMENT

In accordance with article 75 of MiCA, TRAKX states that, prior to the provision of the service of custody and administration of crypto-assets on behalf of clients, and through the Client's acceptance and execution of these GTC, it has informed the relevant Client and entered into a written agreement with the Client defining the operating principles of such crypto-asset custody and administration service and identifying the respective duties and responsibilities of the Parties, in particular TRAKX's duties and responsibilities.

These GTC include, in particular, the following information:

- (a) the identity of the parties to the agreement (*i.e.*, the relevant legal entity identified at the beginning of these GTC, its information and disclosure arrangements, and the persons authorised to act on behalf of TRAKX);
- (b) the nature of the Crypto-asset service provided and a description of that service. In this respect, TRAKX sets out the nature of the TRAKX Services provided in Article 7 "Description of Services" and Article 8 "Orders, Execution and Settlement" of these GTC;
- (c) the custody policy;
- (d) the means of communication between TRAKX and the Client, including the Client's authentication system;
- (e) a description of the security systems used by TRAKX (as described in Annex VII "Safeguarding of Client assets" of these GTC);
- (f) the fees, costs and charges applied by TRAKX (as described in Article 9 "Fees and Pricing" and Annexe I "Fees and Pricing Schedule" of these GTC);
- (g) the applicable law (as provided for in Article 22 "Dispute Resolution" of these GTC).

ANNEX IX – TRANSFER AGREEMENT

In accordance with article 82 of MiCA, the Company states that, prior to the provision of transfer services for crypto-assets on behalf of clients, and through the acceptance and execution of these GTC by the relevant Client, it has informed the Client and entered into a written agreement with the Client defining the operating principles of such Service and identifying the respective duties and responsibility of the Parties.

These GTC include, in particular, the following information:

- (a) the name, registered office address and any other address and means of communication, including the email address, necessary to communicate with the Company;
- (b) the name of the competent national authority responsible for supervising the Company: the French *Autorité des marchés financiers* (AMF);
- (c) a description of the main characteristics of the Crypto-asset transfer service to be provided (Article 7 “Description of Services” and Article 8 “Orders, Execution and Settlement” of these GTC);
- (d) a description of the form and procedure for initiating or consenting to a Crypto-asset transfer and for withdrawing an instruction or consent, including the specification of the information to be provided by the Client for a Crypto-asset transfer to be properly initiated or executed (including authentication requirements): Crypto-asset transfer instructions are initiated by the Client through the Trakx’s platform, following successful authentication and completion of all required security and compliance checks. An instruction may be withdrawn or cancelled by the Client only until it has been accepted for execution by the Company;
- (e) the conditions under which the Company may reject an instruction to carry out a Crypto-asset transfer;
- (f) a reference to the procedure or process established by the Company to determine the time of receipt of an instruction or consent to a Crypto-asset transfer and any cut-off time established by the Company: A transfer instruction is deemed received at the time it is successfully submitted by the Client through the TRAKX’s platform and recorded in the Company’s systems. No specific cut-off times apply; however, execution may be delayed due to operational, technical, compliance, or blockchain-related constraints;
- (g) an explanation, per Crypto-asset, of the distributed ledger technology (DLT) network used for the transfer of such Crypto-asset: Crypto-asset transfers are executed on the native distributed ledger technology (DLT) network on which the relevant crypto-asset is issued (e.g. Bitcoin network for BTC, Ethereum network for ERC-20 tokens, or other supported networks, as applicable);
- (h) the maximum execution time for the Crypto-asset transfer service: the Company sets maximum execution times depending on the Crypto-assets transferred: Under normal circumstances, crypto-asset transfers are executed within a timeframe ranging from a few minutes up to twenty-four (24) hours, depending on the relevant DLT network, network congestion, and technical conditions. These timeframes are subject to delays inherent to the underlying blockchain protocol. These time limits apply subject to any delays occurring in the execution of transactions on the blockchain protocol on which the relevant Crypto-asset(s) is (are) issued;
- (i) for each DLT network, the time or number of block confirmations required for the transfer to become irreversible on the DLT network or to be considered sufficiently irreversible in the case of probabilistic settlement, taking into account the rules and circumstances specific to the relevant DLT network: A crypto-asset transfer is considered sufficiently irreversible once the number of confirmations required by the underlying DLT protocol has been reached (for example, six (6) confirmations on the Bitcoin network or protocol-specific finality mechanisms on other networks);
- (j) all fees, charges or commissions payable by the Client to the Company in connection with the Crypto-asset transfer service, including those relating to the manner in which information is provided

or made available and the frequency thereof, and, where applicable, a breakdown of such fees (as described in Article 9 “Fees and Pricing” and Annexe I “Fees and Pricing Schedule” of these GTC);

(k) the means of communication, including the technical requirements relating to the Client’s equipment and software, agreed between the Parties for the transmission of information or notifications related to the crypto-asset transfer service;

(l) the manner in which information relating to the Crypto-asset transfer service is to be provided or made available, and the frequency thereof;

(m) the language(s) in which the transfer agreement will be concluded (English) and communication conducted during the contractual relationship;

(n) the secure procedure for notifying the Client by the Company in the event of suspected or actual fraud or security threats: The Company notifies the Client without undue delay via email and/or in-platform notification in the event of suspected or actual fraud, security incidents, or threats affecting the crypto-asset transfer service;

(o) the means and time limits within which the Client must notify the Company of any unauthorised or incorrectly initiated or executed Crypto-asset transfer, as well as the Company’s liability, including any maximum liability amount, for unauthorised or incorrectly initiated or executed transfers: the Client is informed that, in the event of an unauthorised or incorrectly initiated or executed transfer, the Client must immediately contact support;

(p) the Client’s right to terminate the agreement for the provision of Crypto-asset transfer services and the procedures for doing so (in practice, by terminating these GTC and ceasing use of the TRAKX Services, which involve operations falling within the scope of the Crypto-asset transfer service); and

(q) an explanation, per Crypto-asset, of the DLT network used for the transfer of such Crypto-asset: Crypto-asset transfers are executed on the distributed ledger technology (DLT) network corresponding to the relevant crypto-asset, in accordance with the technical specifications of such network.